

CONTRACT: Support Contract - Microsoft

Contract Details

Contract ID	C-006
Vendor	Microsoft
Expiry Date	2025-06-10
Version	v2.0
Status	Active
Risk Level	Low
Created By	Anjali Rao
Uploaded Date	2023-06-01

Contract Content

Support Contract - Microsoft

Contract ID: C-006

This Support Contract ("Agreement") is entered into as of the Effective Date specified below by and between Microsoft Corporation, a corporation organized under the laws of the State of Washington, with its principal office located at One Microsoft Way, Redmond, WA 98052 ("Vendor"), and the undersigned entity ("Customer").

1. Parties

This Agreement is made between Microsoft Corporation ("Vendor") and the Customer identified in the signature block below. Vendor agrees to provide support services to Customer in accordance with the terms and conditions set forth herein.

2. Definitions

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Support Services" means the technical assistance, troubleshooting, maintenance, and other services provided by Vendor to Customer as described in Section 3.
- (b) "Response Time" means the time within which Vendor shall respond to Customer's support requests, as specified in Section 3.
- (c) "Uptime Commitment" means the percentage of time during which Vendor's services shall be operational and available to Customer, as specified in Section 3.
- (d) "Effective Date" means the date on which this Agreement is executed by both parties.

3. Scope of Services

Vendor shall provide Support Services to Customer, including but not limited to:

- (a) Technical assistance for Vendor's software and systems;
- (b) Troubleshooting and resolution of issues reported by Customer;
- (c) Maintenance and updates to ensure system functionality and security;
- (d) Response to support requests within the following timelines:
 - (i) Critical issues: within 1 hour;
 - (ii) High-priority issues: within 4 hours;
 - (iii) Standard issues: within 24 hours.

Vendor shall ensure an Uptime Commitment of 99.9% for its services, excluding scheduled maintenance and events beyond Vendor's reasonable control.

4. Term and Termination

- (a) This Agreement shall commence on the Effective Date and remain in effect for a term of one (1) year, unless terminated earlier in accordance with this Section.
- (b) Either party may terminate this Agreement upon thirty (30) days' written notice to the other party.
- (c) Vendor may terminate this Agreement immediately if Customer fails to pay any fees due under this Agreement or breaches any material term of this Agreement.

5. Fees and Payment

- (a) Customer shall pay Vendor the fees specified in the applicable invoice or fee schedule provided by Vendor.
- (b) All fees shall be payable within thirty (30) days of the invoice date.
- (c) Late payments shall incur interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

6. Confidentiality

- (a) Each party agrees to maintain the confidentiality of all non-public information disclosed by the other party that is marked as confidential or that reasonably should be understood to be confidential ("Confidential Information").
- (b) Neither party shall disclose Confidential Information to any third party without the prior written consent of the disclosing party, except as required by law.

7. Data Protection

Vendor shall comply with all applicable data protection laws and regulations in its handling of Customer's data. Vendor shall implement appropriate technical and organizational measures to protect Customer's data against unauthorized access, loss, or destruction.

8. Intellectual Property

- (a) Vendor retains all rights, title, and interest in and to its intellectual property, including software, documentation, and any improvements thereto.
- (b) Customer shall not reverse engineer, decompile, or otherwise attempt to derive the source code of Vendor's software.

9. Warranties

- (a) Vendor warrants that it shall perform the Support Services in a professional and workmanlike manner.

(b) Vendor does not warrant that its software or services will be error-free or uninterrupted.

10. Liability Limitation

(a) Vendor's total liability under this Agreement shall not exceed the fees paid by Customer to Vendor in the twelve (12) months preceding the claim.

(b) Vendor shall not be liable for any indirect, incidental, or consequential damages, including loss of profits or data, arising out of or related to this Agreement.

11. Indemnity

(a) Vendor shall indemnify and hold harmless Customer from any third-party claims arising out of Vendor's infringement of intellectual property rights.

(b) Customer shall indemnify and hold harmless Vendor from any third-party claims arising out of Customer's use of Vendor's services in violation of this Agreement.

12. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Washington, without regard to its conflict of laws principles.

13. Dispute Resolution

(a) Any dispute arising out of or related to this Agreement shall first be resolved through good faith negotiations between the parties.

(b) If the dispute cannot be resolved through negotiations, it shall be submitted to binding arbitration in Seattle, Washington, in accordance with the rules of the American Arbitration Association.

14. Miscellaneous

(a) This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements and understandings, whether written or oral.

(b) No amendment or modification of this Agreement shall be effective unless in writing and signed by both parties.

(c) Neither party may assign this Agreement without the prior written consent of the other party, except in connection with a merger or acquisition.

(d) If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Microsoft Corporation

By: _____

Name: _____

Title: _____

Date: _____

Customer

By: _____

Name: _____

Title: _____

Date: _____

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